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Operating Agreement

Goemon Global Finance, LLC — A Wyoming Limited Liability Company

GOEMON GLOBAL FINANCE · CONFIDENTIAL — FOUNDER · JUNE 30, 2026

Strategic guidance only — not legal, financial, tax, or investment advice.
Securities, money-transmission, and corporate-formation decisions must be reviewed by licensed counsel and a CPA before you act. Sections flagged “ see counsel” are where this matters most.

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Operating Agreement — Goemon Global Finance, LLC

Counsel must review and customize before execution. This is an attorney-grade **scaffold**, not filed legal advice. Bracketed `[•]` fields must be completed; items tagged **see counsel** require a Wyoming-licensed attorney and/or CPA before reliance. Governing law: the **Wyoming Limited Liability Company Act**, Wyo. Stat. §§ 17-29-101 et seq. (the "**Act**").

Companion documents: `FORMATION–articles–of–organization.md`, `INITIAL–RESOLUTIONS.md`, `EQUITY–INCENTIVE–PLAN.md`; strategy `docs/business/CORPORATE–STRUCTURE.md`.

OPERATING AGREEMENT OF GOEMON GLOBAL FINANCE, LLC A Wyoming Limited Liability Company

This Operating Agreement (this "**Agreement**") is entered into and effective as of `[• Effective Date]` (the "**Effective Date**"), by and among the Company and the persons executing this Agreement as Members (each a "**Member**" and collectively the "**Members**").

RECITALS. The Company was formed by filing Articles of Organization with the Wyoming Secretary of State on `[• filing date]`. The Members desire to set forth the terms governing the Company's ownership, management, and operation. The Members intend that the Company be treated as a **partnership** for U.S. federal income tax purposes (a multi-member LLC) unless and until a different election is made under Article IX.

1 ARTICLE I — FORMATION, NAME, PURPOSE, TERM

1.1 Formation. The Company was organized as a Wyoming limited liability company under the Act. The rights and obligations of the Members are governed by the Act, the Articles of Organization, and this Agreement. Where this Agreement differs from a non-mandatory provision of the Act, this Agreement controls (Wyo. Stat. § 17-29-110).

1.2 Name. The name of the Company is **Goemon Global Finance, LLC**. The Company may operate under the brand "**Goemon**" and registered trade names as the Manager directs.

1.3 Registered agent / office. As stated in the Articles of Organization. The principal office is `[• address]`.

1.4 Purpose. Any lawful business under the Act. The Company's business is the development and licensing of **non-custodial financial software and tokenization infrastructure**. In Phase A the Company does not take custody of customer funds and **is not a bank**; regulated activity advances deliberately per [CORPORATE-STRUCTURE.md](#) §6. ⚔

1.5 Term. Perpetual, until dissolved under Article XI.

1.6 Title to property. All Company property is owned by the Company as an entity; no Member has any individual ownership interest in Company property.

2 ARTICLE II — MEMBERS, UNITS, AND CAPITALIZATION

2.1 Units. Membership interests are denominated in **Units**. The Company is authorized to issue up to **10,000,000 Units**. Each issued Unit is, unless designated otherwise, a **Class A Voting Unit** carrying identical economic and voting rights pro rata.

2.2 Members and Percentage Interests. The names of the Members, their Units, and their "Percentage Interests" are set forth on **Schedule A**, as amended from time to time by the Manager to reflect transactions made in accordance with this Agreement. As of the Effective Date:

Member	Class	Units	Percentage Interest	Voting
Chad Cromwell	Class A Voting	5,100,000	51%	Yes
Oran Cromwell	Class A Voting	4,000,000	40%	Yes
Reserved — Equity Incentive Plan pool (<i>unissued</i>)	(per Plan)	900,000	9%	Per award
Total authorized		10,000,000	100%	

The **900,000 reserved Units (9%)** are **not issued** as of the Effective Date. They are held in reserve by the Company and may be issued only as awards under the **Equity Incentive Plan** ([EQUITY-INCENTIVE-PLAN.md](#)), incorporated by Article VIII). Until issued, reserved Units are not outstanding, carry no vote, and receive no allocations or distributions. **Percentage Interests for governance are computed on issued and outstanding Units**; accordingly, as of the Effective Date Chad Cromwell holds $51\% / 9,100,000 = 56.04\%$ and Oran Cromwell

40% / 9,100,000 = 43.96% of the outstanding vote, and all then-outstanding Units are held by the two Members. (The 51/40/9 figures express each holder's share of fully diluted, fully reserved capitalization; see `INITIAL-RESOLUTIONS.md`.) ✎ **confirm the governance-denominator convention with counsel and keep Schedule A authoritative.**

2.3 Vesting of founder Units. The Units issued to Chad Cromwell and Oran Cromwell on the Effective Date are **fully vested** and not subject to repurchase for failure to vest. Future Plan awards vest under their award agreements.

2.4 Admission of new Members. A person becomes a Member only upon (a) issuance of Units or admission approved as a **Reserved Matter** (§5.4) — *except* Plan awards, which the Manager may issue from the reserved pool under Article VIII — and (b) execution of a **Joinder** (Exhibit A) agreeing to be bound by this Agreement.

2.5 No certificates (default). Units are uncertificated unless the Manager elects to issue certificates. The Company's books (Schedule A) are conclusive as to ownership.

2.6 Liability shield. No Member or Manager is personally liable for Company obligations solely by reason of that status (Wyo. Stat. § 17-29-304). Members shall observe Company formalities (separate accounts, no commingling) to preserve the shield.

3 ARTICLE III — CAPITAL CONTRIBUTIONS

3.1 Initial contributions. Each Member has contributed the cash and/or property set forth on **Schedule A**. The Members acknowledge that initial capital includes:

- **Cash contributions** of `[• $ amount per Member]`; and
- **Contributed intellectual property** — the software, source code, designs, the **Goemon** marks, domains, and architecture documentation contributed to the Company pursuant to the IP / Technology Assignment authorized in `INITIAL-RESOLUTIONS.md` and described in `CORPORATE-STRUCTURE.md` §5. The agreed value of the contributed IP is `[• $ value]`. ✎ **valuation / 721 contribution treatment — confirm with CPA.**

3.2 Capital accounts. A capital account is maintained for each Member in accordance with Treas. Reg. § 1.704-1(b)(2)(iv). ✎

3.3 No further contributions. No Member is obligated to make additional capital contributions. Additional contributions, if any, are a **Reserved Matter** (§5.4).

3.4 No interest; no withdrawal. No Member earns interest on capital, and no Member may withdraw capital except as expressly permitted by this Agreement.

4 ARTICLE IV — ALLOCATIONS AND DISTRIBUTIONS

4.1 Allocations. Profits and losses are allocated among the Members in proportion to their Percentage Interests, subject to the regulatory allocations (qualified income offset, minimum gain chargeback, § 704(b)/(c)) set out in **Schedule B** (tax appendix). Holders of profits interests share only in income and appreciation **above** their threshold/hurdle amount per Article VIII and their award agreements. **CPA to finalize Schedule B.**

4.2 Distributions. Distributions are made at the times and in the amounts the Manager determines, pro rata to Percentage Interests, subject to the **Reserved Matter** consent for distributions outside the ordinary course (§5.4) and to the solvency limitations of Wyo. Stat. § 17-29-405.

4.3 Tax distributions. To the extent of available cash and prudent reserves, the Company shall use commercially reasonable efforts to distribute to each Member, pro rata, an amount sufficient to cover that Member's estimated federal and state income tax on the Company's allocated taxable income, at an assumed combined rate of **[• %]**. Tax distributions are advances against, and offset, later distributions under § 4.2.

4.4 Withholding. The Company may withhold and remit taxes as required and treat such amounts as distributed to the affected Member.

5 ARTICLE V — MANAGEMENT

5.1 Manager-managed. The Company is **manager-managed**. Except for Reserved Matters (§5.4), the **Manager** has full and exclusive authority to manage the business and affairs of the Company and to bind the Company (Wyo. Stat. § 17-29-407(c)).

5.2 Initial Manager. **Chad Cromwell** is the initial and sole Manager, and also serves as **Chief Executive Officer**. The Manager serves until resignation, death, incapacity, or removal. **Removal or replacement of the Manager is a Reserved Matter** (§5.4) requiring unanimous Member consent.

5.3 Authority of the Manager (ordinary course). Without limiting § 5.1, the Manager may, in the ordinary course: hire and terminate personnel and contractors; set compensation; enter contracts and licenses; manage banking and treasury; **issue awards from the reserved Equity Incentive Plan pool** (Article VIII); maintain books and the cap table; prosecute and protect IP; and operate the product consistent with the Phase-A compliance posture. This codifies the operational "**human CEO gate**" reflected in the product architecture (`CLAUDE.md` , `docs/GOEMON-BRAND.md` §3).

5.4 Reserved Matters (unanimous Member consent required). Notwithstanding § 5.1, the following actions require the **prior written consent of all Members** (while the Members' default voting rule of unanimity under § 6.2 is in effect):

1. Amending the Articles of Organization or this Agreement.
2. Admitting a new Member or issuing, redeeming, or repurchasing Units **outside the Equity Incentive Plan** (issuance of the reserved 900,000 Pool Units as Plan awards is delegated to the Manager under Article VIII).
3. Increasing or decreasing authorized Units, or creating a new class/series of Units.
4. Approving or amending the **Equity Incentive Plan** or increasing the reserved Pool above 900,000 Units (9%).
5. Incurring indebtedness, guaranties, or capital commitments exceeding `[$•]` in the aggregate, or granting a lien on Company assets (including any encumbrance of the IP).
6. Selling, licensing exclusively, assigning, or otherwise disposing of all or substantially all of the Company's assets or its core intellectual property.
7. A merger, conversion, recapitalization, or reorganization — **including the planned conversion to a Delaware C-corporation** (Article VII, § 7.6).
8. Dissolving or winding up the Company.
9. Any **related-party transaction** between the Company and a Member, Manager, officer, or their affiliate or family member.
10. Making, changing, or revoking a **material tax election** (including an S-corp or entity-classification election) or changing the Partnership Representative.
11. Approving distributions other than ordinary-course and tax distributions (§ 4.2–4.3).
12. Removing, replacing, or materially changing the authority or compensation of the Manager; commencing or settling material litigation; or filing for bankruptcy.

5.5 Officers. The Manager may appoint officers (e.g., CEO/President, Treasurer/CFO, Secretary) with delegated authority. **Oran Cromwell** is eligible to serve as an officer. Officers serve at the Manager's discretion, subject to § 5.4 where their action would constitute a Reserved Matter.

5.6 Standard of care. The Manager and officers shall discharge their duties in good faith, consistent with the duties owed under the Act as modified by this Agreement. To the maximum extent permitted by Wyo. Stat. § 17-29-409, fiduciary duties are as set forth herein and the Manager may pursue other ventures **except** that the Manager shall not usurp a Company opportunity in the Company's actual line of business without offering it to the Company. ☞

5.7 Reliance and indemnification. The Manager may rely on experts and is indemnified per Article XII.

6 ARTICLE VI — VOTING AND MEMBER ACTION

6.1 Voting power. Each Member votes in proportion to that Member's Percentage Interest of issued and outstanding Units (Schedule A). Reserved (unissued) Pool Units do not vote.

6.2 Default rule — unanimity. As of the Effective Date and until changed under § 6.4, **all Member action requires the affirmative vote or written consent of ALL Members.** The Members have intentionally chosen unanimous decision-making; both Members hold voting Units and no Company action requiring Member approval may be taken without both Members' agreement.

6.3 Action by written consent; meetings. Members may act by written (including electronic) consent without a meeting. Meetings may be called by the Manager or any Member on [•] days' notice; notice may be waived. Electronic/remote participation is permitted.

6.4 Fallback voting rule (effective only if unanimity is later removed). If the Members unanimously agree in writing to remove the unanimity requirement of § 6.2 (itself a Reserved Matter), then thereafter, unless otherwise agreed: (a) **ordinary matters** are decided by Members holding a **majority (>50%)** of the outstanding Percentage Interests — under the current cap table this vests ordinary control in **Chad Cromwell (majority Member)**; and (b) **fundamental matters** (those listed in § 5.4(1)–(8)) require a **supermajority of [• 75] %** of Percentage Interests. This fallback exists so the Company is not permanently exposed to deadlock if the Members later choose majority governance.

6.5 Deadlock and buy-sell. Because two-Member unanimity creates the possibility of deadlock, if the Members are unable to agree on a Reserved Matter that the Manager reasonably determines is necessary for the Company's operation, the following process applies, in order:

1. **Good-faith negotiation** — the Members confer for [• 30] days.
2. **Mediation** — non-binding mediation under [•] rules, costs shared equally.
3. **Buy-sell ("shotgun") option** — if still unresolved after [• 60] days, either Member may deliver a notice offering to buy the other's Units at a stated per-Unit price; the recipient must, within [• 30] days, elect either to **sell** at that price or to **buy** the offeror's Units at the same per-Unit price. Closing occurs within [• 60] days.

This mechanism is a backstop, not a default exit; the Members intend to govern by consensus. ☞ — **buy-sell terms (valuation, financing, family considerations) should be tailored with counsel.**

7 ARTICLE VII — TRANSFER RESTRICTIONS

7.1 General restriction. No Member may sell, assign, pledge, or otherwise transfer any Unit or economic interest except as permitted by this Article. Any attempted transfer in violation is void.

7.2 Consent. Except for Permitted Transfers (§ 7.4), a transfer requires the prior written consent of all other Members (a Reserved Matter), and the transferee becomes a **Member** (as opposed to a mere economic assignee) only upon such consent and execution of a **Joinder** (Exhibit A).

7.3 Right of First Refusal (ROFR). Before any transfer to a third party, the transferring Member must offer the Units **first to the Company**, then **to the other Members** pro rata, on the same terms as the bona fide third-party offer, with [• 30] days to exercise. Units not taken up may then be transferred to the third party on no more favorable terms within [• 90] days, subject to § 7.2.

7.4 Permitted Transfers. A Member may transfer Units, without ROFR but subject to Joinder and continued application of this Agreement, to: (a) a revocable trust or estate-planning vehicle for the Member's benefit or immediate family; (b) on death, to the Member's estate or heirs; provided the transferee takes subject to all restrictions, and **voting rights pass only with the Manager-/Member-consented admission as a Member.** ☞ **estate-planning tailoring (e.g., the father/son ownership).**

7.5 Tag-along / drag-along. (a) **Tag-along:** if a Member proposes to sell Units to a third party, the other Members may participate pro rata on the same terms. (b) **Drag-along:** if Members holding [•] % of Percentage Interests (and, while unanimity is in effect, **all**

Members) approve a sale of the Company, the remaining Members shall participate on the same terms. ☞

7.6 Planned Delaware C-corporation conversion. The Members acknowledge the strategy (`CORPORATE-STRUCTURE.md` §2.2) to **convert the Company to a Delaware C-corporation** upon the first institutional financing or the standing-up of a regulated subsidiary. Each Member agrees to cooperate in good faith with such conversion (a Reserved Matter) and to exchange Units for equivalent shares of the successor corporation in proportion to Percentage Interests, with outstanding Plan awards converting as provided in the Equity Incentive Plan.

8 ARTICLE VIII — EQUITY INCENTIVE PLAN

8.1 Adoption. The Company has adopted the **Goemon Global Finance, LLC Equity Incentive Plan** (the "Plan," `EQUITY-INCENTIVE-PLAN.md`), incorporated herein by reference.

8.2 Reserved Pool. 900,000 Units (9%) are reserved for issuance as awards under the Plan. The Manager may grant **profits interests** and **Unit options** from the Pool to eligible employees, advisors, contractors, and venture/strategic partners, **without further Member consent**, provided the aggregate awards do not exceed the Pool. Increasing the Pool is a Reserved Matter (§ 5.4(4)).

8.3 Profits interests. Awards intended to be **profits interests** confer rights only to future profits and appreciation above a threshold (hurdle) amount equal to the Company's liquidation value at grant (Rev. Procs. 93-27 and 2001-43). Recipients should file a protective § 83(b) election within 30 days of grant. ☞ / CPA.

8.4 Joinder; restrictions. Each award recipient executes a **Joinder** (Exhibit A) and holds Units subject to this Agreement, including vesting, repurchase on termination, transfer restrictions, ROFR, and (unless an award expressly grants voting Units) **non-voting** status.

8.5 Conversion. On the Delaware C-corp conversion (§ 7.6), outstanding awards convert to equivalent corporate equity (options / restricted stock) per the Plan.

9 ARTICLE IX — TAX MATTERS

9.1 Classification. The Company is a multi-member LLC taxed as a **partnership** for U.S. federal income tax purposes (Form 1065; Schedule K-1 to each Member). No Member shall

take a contrary position. A change of classification (e.g., S-corp election) is a Reserved Matter.
⚖ CPA.

9.2 Partnership Representative. Chad Cromwell is designated the **Partnership Representative** under the centralized partnership audit rules (BBA / IRC § 6223). The Partnership Representative shall keep the Members informed and act in their collective interest; material audit elections (e.g., push-out) are Reserved Matters.

9.3 Capital accounts / allocations. Maintained per Article IV and Schedule B (§ 704(b), § 704(c)). ⚖

9.4 Returns. The Company timely files all required returns and furnishes K-1s.

10 ARTICLE X — BOOKS, RECORDS, CONFIDENTIALITY, IP

10.1 Books and records. The Company maintains complete books at its principal office, including the cap table (Schedule A), financials, and the records required by Wyo. Stat. § 17-29-410. Members have inspection rights as provided by the Act, subject to confidentiality and reasonable purpose.

10.2 Fiscal year. The calendar year, unless the Manager (with CPA advice) elects otherwise.

10.3 Bank accounts. Company funds are held in Company accounts; **no commingling** with any Member's personal funds or with customer-adjacent funds ([CORPORATE-STRUCTURE.md](#) §7).

10.4 Confidentiality. Each Member shall keep confidential all non-public Company information, including source code, the architecture, customer data, and business plans, during and after membership, except as required by law.

10.5 Intellectual property. All work product, inventions, code, and materials created by any Member, officer, employee, or contractor for the Company are the **sole property of the Company**. Each such person shall execute a present assignment of inventions to the Company (the IP / Technology Assignment, authorized in [INITIAL-RESOLUTIONS.md](#)). No Member retains any personal license to Company IP.

11 ARTICLE XI — DISSOLUTION AND WINDING UP

11.1 Dissolution events. The Company dissolves only upon (a) the unanimous written consent of the Members (a Reserved Matter), or (b) entry of a decree of judicial dissolution under the Act. Death, withdrawal, or bankruptcy of a Member does **not** dissolve the Company; the remaining Member(s) may continue the business.

11.2 Winding up. On dissolution, the Manager (or a liquidator) winds up: collects assets, pays creditors (including Member loans), sets aside reserves, and distributes the remainder to the Members in accordance with positive capital account balances / Percentage Interests (Wyo. Stat. § 17-29-708). **CPA on liquidation waterfall.**

11.3 Articles of dissolution. The Company files articles of dissolution with the Wyoming SOS when winding up is complete.

12 ARTICLE XII — LIABILITY LIMITATION AND INDEMNIFICATION

12.1 Limitation of liability. To the fullest extent permitted by the Act, no Manager, Member, or officer is liable to the Company or the Members for any act or omission, except for conduct constituting **willful misconduct, fraud, or a knowing violation of law**, or for any transaction from which the person derived an improper personal benefit.

12.2 Indemnification. The Company shall indemnify and hold harmless each Manager, Member, and officer against losses, liabilities, and expenses (including reasonable attorneys' fees) arising from the Company's business, to the fullest extent permitted by Wyo. Stat. § 17-29-408, except for matters described in § 12.1. The Company may advance expenses upon an undertaking to repay if indemnification is ultimately unavailable.

12.3 Insurance. The Company may purchase D&O and E&O insurance (**CORPORATE-STRUCTURE.md** §9). **CPA**

13 ARTICLE XIII — GENERAL PROVISIONS

13.1 Governing law. This Agreement is governed by the laws of the **State of Wyoming**, without regard to conflicts principles.

13.2 Dispute resolution. Disputes are resolved first under § 6.5 (negotiation/mediation), then by .

13.3 Amendment. This Agreement may be amended only by the **written consent of all Members** (a Reserved Matter). Schedule A may be updated by the Manager to reflect transactions made in accordance with this Agreement without a formal amendment.

13.4 Entire agreement. This Agreement, with its Schedules and Exhibits and the Plan, is the entire agreement among the Members regarding its subject matter and supersedes prior understandings.

13.5 Severability. If any provision is invalid, the remainder continues in effect.

13.6 Notices. In writing, to the addresses on Schedule A (or by email to addresses the Members designate).

13.7 Counterparts; electronic signatures. This Agreement may be executed in counterparts and by electronic signature (E-SIGN / UETA), each of which is an original.

13.8 No third-party beneficiaries. Except for indemnitees under Article XII.

13.9 Spousal/marital consent. If required by the Members' state of residence (community property), each Member's spouse executes the **Spousal Consent** (Exhibit C).

14 EXECUTION

IN WITNESS WHEREOF, the parties have executed this Operating Agreement as of the Effective Date.

THE COMPANY: GOEMON GLOBAL FINANCE, LLC

By: _____ Name: **Chad Cromwell** Title: Manager and Chief Executive Officer Date:

THE MEMBERS:

Chad Cromwell, Member — 5,100,000 Class A Voting Units (51%) Date:

Oran Cromwell, Member — 4,000,000 Class A Voting Units (40%) Date:

15 SCHEDULE A — Members, Capital Contributions, and Units (Effective Date)

Member	Address	Cash contribution	Non-cash (IP) contribution	Units	Class	Percentage Interest (fully reserved basis)
Chad Cromwell	[•]	[\$•]	Contributed IP (see § 3.1) [\$• value]	5,100,000	Class A Voting	51%
Oran Cromwell	[•]	[\$•]	[•]	4,000,000	Class A Voting	40%
Equity Incentive Plan — reserved Pool (unissued)	—	—	—	900,000	Per award	9%
Total				10,000,000		100%

Outstanding Units as of the Effective Date: 9,100,000 (Chad 56.04% / Oran 43.96% of the outstanding vote). The 51/40/9 figures express each holder's share of fully diluted, fully reserved capitalization.

16 SCHEDULE B — Tax Allocations Appendix

[• CPA to complete: § 704(b) regulatory allocations, QIO, minimum gain chargeback, § 704(c) for contributed IP. 22]

17 EXHIBIT A — Form of Joinder Agreement

[• Short joinder by which a transferee or Plan award recipient agrees to be bound by this Agreement and becomes a Member or economic interest holder as

applicable.]

18 EXHIBIT B — Equity Incentive Plan

Incorporated by reference: `EQUITY-INCENTIVE-PLAN.md`.

19 EXHIBIT C — Spousal Consent (if applicable)

[• Consent of a Member's spouse to be bound by the transfer and buy-sell terms. ^{cc}
– required in community-property states.]